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First and foremost, a court should not afford *Auer* deference unless, after exhausting all the “traditional tools” of construction, *Chevron U. S. A. Inc. v. Natural Resources Defense Council, Inc.*, 467 U. S. 837, 843, n. 9, the regulation is genuinely ambiguous. A court must carefully consider the text, structure, history, and purpose of a regulation before resorting to deference. If genuine ambiguity remains, the agency’s reading must still fall “within the bounds of reasonable interpretation.” *Arlington v. FCC*, 569 U. S. 290, 296.

And even then, not every reasonable agency reading of a genuinely ambiguous rule should receive *Auer* deference. Rather, a court must also make an independent inquiry into whether the character and context of the agency interpretation entitles it to controlling weight. See, e. g., *Christopher v. SmithKline Beecham Corp.*, 567 U. S. 142, 155. The inquiry along this dimension does not reduce to an exhaustive test, but the Court has laid out some especially important markers for identifying when *Auer* deference is and is not appropriate. To begin with, the regulatory interpretation must be the agency’s authoritative or official position, rather than any more *ad hoc* statement not reflecting the agency’s views. Next, the agency’s interpretation must in some way implicate its substantive expertise, as the basis for deference ebbs when the subject matter of a dispute is distant from the agency’s ordinary duties. Finally, an agency’s reading of a rule must reflect its “fair and considered judgment.” *Auer*, 519 U. S., at 462. A court should decline to defer, for example, to a merely “‘convenient litigating position,’” *Christopher*, 567 U. S., at 155, or to a new interpretation that creates “unfair surprise” to regulated parties, *Long Island Care at Home, Ltd. v. Coke*, 551 U. S. 158, 170. Pp. 573–580.

(b) *Stare decisis* cuts strongly against overruling *Auer*. Adherence to precedent is “a foundation stone of the rule of law,” *Michigan v. Bay Mills Indian Community*, 572 U. S. 782, 798, and any departure from the doctrine demands “special justification,” *Halliburton Co. v. Erica P. John Fund, Inc.*, 573 U. S. 258, 266. That is even more than usually so in the circumstances here. First, *Kisor* asks the Court to overrule a “long line of precedents”—each one reaffirming the rest and going back 75 years or more. *Bay Mills*, 572 U. S., at 798. Second, because *Auer* deference pervades the whole corpus of administrative law, abandoning it would cast doubt on many settled constructions of rules. And third, even if the Court is wrong about *Auer*, “Congress remains free to alter what [the Court has] done.” *Patterson v. McLean Credit Union*, 491 U. S. 164, 172–173. For approaching a century, Congress has let this deference regime work side-by-side with both the Administrative Procedure Act (APA) and the many statutes delegating rulemaking

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power to agencies. This Court would thus need a particularly “special justification” to now reverse *Auer*.

Kisor offers nothing of that ilk. Nearly all of his arguments relate to whether the doctrine is wrong or poorly reasoned. He does not claim that *Auer* deference is “unworkable,” a traditional basis for overruling a case, *Patterson*, 491 U. S., at 173, or point to changes in legal rules that make *Auer* a “doctrinal dinosaur,” *Kimble v. Marvel Entertainment, LLC*, 576 U. S. 446, 458. Instead, his lone special justification is that the administrative state has evolved substantially since this Court decided *Seminole Rock* in 1945. It is true that agencies have far-reaching influence today; that is one reason the Court has taken care to reinforce the limits of *Auer* deference. But it is no answer to the growth of agencies for courts to take over their expertise-based, policy-making functions. Pp. 586–589.

(c) Turning to Kisor’s own case, a remand is necessary for two reasons. First, the Federal Circuit jumped the gun in declaring the VA’s regulation ambiguous before bringing all its interpretive tools to bear on the question. Second, the Federal Circuit assumed too fast that *Auer* deference should apply in the event of genuine ambiguity, rather than assessing whether the interpretation is of the sort that Congress would want to receive deference. On remand, the Court of Appeals must reconsider whether *Auer* deference is warranted, bearing in mind the principles outlined in this opinion. Pp. 589–590.

JUSTICE KAGAN, joined by JUSTICE GINSBURG, JUSTICE BREYER, and JUSTICE SOTOMAYOR, concluded in Parts II–A and III–A:

(a) *Auer* deference is rooted in a presumption that Congress would generally want the agency to play the primary role in resolving regulatory ambiguities. See *Martin v. Occupational Safety and Health Review Comm’n*, 499 U. S. 144, 151–153. In part, the presumption arises because the agency that promulgated a rule is in the “better position [to] reconstruct” its original meaning. *Id.*, at 152. In still greater measure, the presumption stems from an awareness that resolving genuine regulatory ambiguities often “‘entail[s] the exercise of judgment grounded in policy concerns,’” an area where agencies have a comparative advantage over courts. *Thomas Jefferson Univ. v. Shalala*, 512 U. S. 504, 512. Finally, the presumption reflects the well-known benefits of uniformity in interpreting ambiguous rules. *Auer* deference promotes “resolving interpretive issues by uniform administrative decision, rather than piecemeal by litigation,” *Ford Motor Credit Co. v. Milhollin*, 444 U. S. 555, 568. Pp. 566–573.

(b) None of Kisor’s arguments provide good reason to reconsider *Auer* deference. First, he claims that *Auer* is inconsistent with the APA’s judicial review provision, which instructs reviewing courts to

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“determine the meaning” of an agency action. 5 U.S.C. § 706. Even when a court defers to a regulatory reading, however, it acts consistently with Section 706. That provision does not specify the standard of review a court should use in “determin[ing] the meaning” of an ambiguous rule. This Court thus presumes that Congress would want courts to do so by reviewing agency interpretations for reasonableness. That is especially so because Section 706, when enacted, was understood to restate the present law of judicial review—which would have included deference under *Seminole Rock*. Nor does *Auer* circumvent the APA’s rulemaking requirements, which require regulations to go through notice and comment before they can bind third parties. Even though a court might defer to an agency’s interpretation of a regulation, the agency’s interpretation itself never forms the basis for an enforcement action. Rather, an agency bringing an enforcement action must always rely on a rule that went through notice and comment. And courts, in turn, always retain the final authority to approve—or not—an agency’s reading of that notice-and-comment rule. See *Perez v. Mortgage Bankers Assn.*, 575 U.S. 92, 104, n. 4.

Kisor’s policy and constitutional arguments fail just as roundly. As a policy matter, he contends that *Auer* encourages agencies to issue vague and open-ended regulations, confident that they can later impose whatever interpretation of those rules they prefer. But no real evidence backs up that assertion and strong incentives cut in the opposite direction. Finally, Kisor asserts that *Auer* deference violates “separation-of-powers principles” by vesting both legislative and judicial functions in one branch. If that objection is to agencies’ usurping the interpretive role of courts, *Auer*—when properly understood and applied—does no such thing. And if the objection is instead to the supposed commingling of functions within an agency, this Court has explained that even when agency “activities take ‘legislative’ and ‘judicial’ forms,” they continue to be “exercises of the ‘executive Power,’” and thus raise no constitutional concerns. *Arlington*, 569 U.S., at 304–305, n. 4. Pp. 580–586.

KAGAN, J., announced the judgment of the Court and delivered the opinion of the Court with respect to Parts I, II–B, III–B, and IV, in which ROBERTS, C. J., and GINSBURG, BREYER, and SOTOMAYOR, JJ., joined, and an opinion with respect to Parts II–A and III–A, in which GINSBURG, BREYER, and SOTOMAYOR, JJ., joined. ROBERTS, C. J., filed an opinion concurring in part, *post*, p. 590. GORSUCH, J., filed an opinion concurring in the judgment, in which THOMAS, J., joined, in which KAVANAUGH, J., joined as to Parts I, II, III, IV, and V, and in which ALITO, J., joined as to Parts I, II, and III, *post*, p. 592. KAVANAUGH, J., filed an opinion concurring in the judgment, in which ALITO, J., joined, *post*, p. 631.

Counsel

Paul W. Hughes argued the cause for petitioner. With him on the briefs were *Michael B. Kimberly*, *Andrew J. Pincus*, *Charles A. Rothfeld*, *E. Brantley Webb*, *Kenneth M. Carpenter*, and *Eugene R. Fidell*.

Solicitor General Francisco argued the cause for respondent. With him on the brief were *Assistant Attorney General Hunt*, *Deputy Solicitor General Wall*, *Deputy Assistant Attorney General Mooppan*, *Matthew Guarnieri*, *Mark B. Stern*, and *Daniel Aguilar*.*

*Briefs of *amici curiae* urging reversal were filed for the State of Utah et al. by *Sean D. Reyes*, Attorney General of Utah, *Tyler R. Green*, Solicitor General, and *Stanford E. Purser*, Deputy Solicitor General, and by the Attorneys General for their respective States as follows: *Steve Marshall* of Alabama, *Kevin G. Clarkson* of Alaska, *Mark Brnovich* of Arizona, *Leslie Rutledge* of Arkansas, *Christopher M. Carr* of Georgia, *Curtis T. Hill, Jr.*, of Indiana, *Derek Schmidt* of Kansas, *Jeff Landry* of Louisiana, *Eric S. Schmitt* of Missouri, *Doug Peterson* of Nebraska, *Dave Yost* of Ohio, *Mike Hunter* of Oklahoma, *Alan Wilson* of South Carolina, *Ken Paxton* of Texas, and *Patrick Morrissey* of West Virginia; for the American Federation of Labor and Congress of Industrial Organizations by *Harold C. Becker* and *Matthew J. Ginsburg*; for the Atlantic Legal Foundation by *Martin S. Kaufman*; for the Cato Institute et al. by *Ilya Shapiro* and *John J. Vecchione*; for the Center for Constitutional Jurisprudence by *John C. Eastman* and *Anthony T. Caso*; for the Center for Workplace Compliance by *Rae T. Vann* and *Michael P. Bracken*; for the Chamber of Commerce of the United States of America et al. by *Mark W. Mosier*, *Kevin F. King*, and *Daniel Saphire*; for the National Association of Home Builders et al. by *Evan A. Young*, *Megan Berge*, *Jared Wigginton*, *Amy Chai*, *Thomas J. Ward*, *Karen R. Harned*, *Elizabeth Milito*, *Scott Yager*, *Ellen Steen*, *Travis Cushman*, *Peter C. Tolsdorf*, and *Richard Moskowitz*; for the National Immigrant Justice Center et al. by *Jean-Claude André* and *Charles Roth*; for the National Organization of Veterans' Advocates, Inc., et al. by *Roman Martinez*, *Benjamin W. Snyder*, *Kevin J. Bartlett*, *Christopher J. Clay*, *Leonard J. Selfon*, and *Linda E. Blauhut*; for the National Right to Work Legal Defense Foundation, Inc., by *Raymond J. LaJeunesse, Jr.*; for the National Veterans Legal Services Program et al. by *Amy Mason Saharia*, *Liam J. Montgomery*, *William T. Marks*, and *Barton F. Stickman*; for the New Civil Liberties Alliance by *Jonathan F. Mitchell* and *Steve Simpson*; for the Pacific Legal Foundation et al. by *Anthony L. François*, *Damien M. Schiff*, *Daniel M. Ortner*, and *Todd F.*

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JUSTICE KAGAN announced the judgment of the Court and delivered the opinion of the Court with respect to Parts I, II–B, III–B, and IV, and an opinion with respect to Parts II–A and III–A, in which JUSTICE GINSBURG, JUSTICE BREYER, and JUSTICE SOTOMAYOR join.

This Court has often deferred to agencies’ reasonable readings of genuinely ambiguous regulations. We call that practice *Auer* deference, or sometimes *Seminole Rock* deference, after two cases in which we employed it. See *Auer v. Robbins*, 519 U. S. 452 (1997); *Bowles v. Seminole Rock & Sand Co.*, 325 U. S. 410 (1945). The only question presented here is whether we should overrule those decisions, discarding the deference they give to agencies. We answer that question no. *Auer* deference retains an important role in construing agency regulations. But even as we uphold it, we reinforce its limits. *Auer* deference is sometimes appropriate and sometimes not. Whether to apply it depends on a range of considerations that we have noted now and again, but compile and further develop today. The deference doc-

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Briefs of *amici curiae* urging affirmance were filed for Administrative Law Scholars by *Donald B. Verrilli, Jr.*, and *Ronald M. Levin* and *Gillian E. Metzger*, both *pro se*; and for Sen. Sheldon Whitehouse by *Mr. Whitehouse, pro se*, and *Jason P. Steed*.

Briefs of *amici curiae* were filed for Professors of Administrative Law and Federal Regulation by *Vincent Levy*, *Daniel M. Sullivan*, *Gregory Dubinsky*, and *Samuel Estreicher, pro se*; and for Public Citizen by *Scott L. Nelson* and *Allison M. Zieve*.

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trine we describe is potent in its place, but cabined in its scope. On remand, the Court of Appeals should decide whether it applies to the agency interpretation at issue.

I

We begin by summarizing how petitioner James Kisor’s case made its way to this Court. Truth be told, nothing recounted in this Part has much bearing on the rest of our decision. The question whether to overrule *Auer* does not turn on any single application, whether right or wrong, of that decision’s deference doctrine. But a recitation of the facts and proceedings below at least shows how the question presented arose.

Kisor is a Vietnam War veteran seeking disability benefits from the Department of Veterans Affairs (VA). He first applied in 1982, alleging that he had developed post-traumatic stress disorder (PTSD) as a result of his participation in a military action called Operation Harvest Moon. The report of the agency’s evaluating psychiatrist noted Kisor’s involvement in that battle, but found that he “d[id] not suffer from PTSD.” App. 12, 14. The VA thus denied Kisor benefits. There matters stood until 2006, when Kisor moved to reopen his claim. Based on a new psychiatric report, the VA this time agreed that Kisor suffered from PTSD. But it granted him benefits only from the date of his motion to reopen, rather than (as he requested) from the date of his first application.

The Board of Veterans’ Appeals—a part of the VA, represented in Kisor’s case by a single administrative judge—affirmed that timing decision, based on its interpretation of an agency rule. Under the VA’s regulation, the agency could grant Kisor retroactive benefits if it found there were “relevant official service department records” that it had not considered in its initial denial. See 38 CFR §3.156(c)(1) (2013). The Board acknowledged that Kisor had come up with two new service records, both confirming his participa-

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tion in Operation Harvest Moon. But according to the Board, those records were not “relevant” because they did not go to the reason for the denial—that Kisor did not have PTSD. See App. to Pet. for Cert. 43a (“[The] documents were not relevant to the decision in May 1983 because the basis of the denial was that a diagnosis of PTSD was not warranted, not a dispute as to whether or not the Veteran engaged in combat”). The Court of Appeals for Veterans Claims, an independent Article I court that initially reviews the Board’s decisions, affirmed for the same reason.

The Court of Appeals for the Federal Circuit also affirmed, but it did so based on deference to the Board’s interpretation of the VA rule. See *Kisor v. Shulkin*, 869 F.3d 1360, 1368 (2017). Kisor had argued to the Federal Circuit that to count as “relevant,” a service record need not (as the Board thought) “counter[] the basis of the prior denial”; instead, it could relate to some other criterion for obtaining disability benefits. *Id.*, at 1366 (internal quotation marks omitted). The Federal Circuit found the regulation “ambiguous” as between the two readings. *Id.*, at 1367. The rule, said the court, does not specifically address “whether ‘relevant’ records are those casting doubt on the agency’s prior [rationale or] those relating to the veteran’s claim more broadly.” *Ibid.* So how to choose between the two views? The court continued: “Both parties insist that the plain regulatory language supports their case, and neither party’s position strikes us as unreasonable.” *Id.*, at 1368. Because that was so, the court believed *Auer* deference appropriate: The agency’s construction of its own regulation would govern unless “plainly erroneous or inconsistent with the VA’s regulatory framework.” *Ibid.* (internal quotation marks omitted). Applying that standard, the court upheld the Board’s reading—and so approved the denial of retroactive benefits.

We then granted certiorari to decide whether to overrule *Auer* and (its predecessor) *Seminole Rock*. 586 U. S. 1050 (2018).

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II

Before addressing that question directly, we spend some time describing what *Auer* deference is, and is not, for. You might view this Part as “just background” because we have made many of its points in prior decisions. But even if so, it is background that matters. For our account of why the doctrine emerged—and also how we have limited it—goes a long way toward explaining our view that it is worth preserving.

A

Begin with a familiar problem in administrative law: For various reasons, regulations may be genuinely ambiguous. They may not directly or clearly address every issue; when applied to some fact patterns, they may prove susceptible to more than one reasonable reading. Sometimes, this sort of ambiguity arises from careless drafting—the use of a dangling modifier, an awkward word, an opaque construction. But often, ambiguity reflects the well-known limits of expression or knowledge. The subject matter of a rule “may be so specialized and varying in nature as to be impossible”—or at any rate, impracticable—to capture in its every detail. *SEC v. Chenery Corp.*, 332 U.S. 194, 203 (1947). Or a “problem[] may arise” that the agency, when drafting the rule, “could not [have] reasonably foresee[n].” *Id.*, at 202. Whichever the case, the result is to create real uncertainties about a regulation’s meaning.

Consider these examples:

- In a rule issued to implement the Americans with Disabilities Act (ADA), the Department of Justice requires theaters and stadiums to provide people with disabilities “lines of sight comparable to those for members of the general public.” 28 CFR pt. 36, App. A, p. 563 (1996). Must the Washington Wizards construct wheelchair seating to offer lines of sight over spectators when they rise to their feet? Or is it enough that the facility offers

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comparable views so long as everyone remains seated? See *Paralyzed Veterans of Am. v. D. C. Arena L. P.*, 117 F. 3d 579, 581–582 (CA DC 1997).

- The Transportation Security Administration (TSA) requires that liquids, gels, and aerosols in carry-on baggage be packed in containers smaller than 3.4 ounces and carried in a clear plastic bag. Does a traveler have to pack his jar of truffle pâté in that way? See *Laba v. Copeland*, 2016 WL 5958241, *1 (WDNC, Oct. 13, 2016).
- The Mine Safety and Health Administration issues a rule requiring employers to report occupational diseases within two weeks after they are “diagnosed.” 30 CFR § 50.20(a) (1992). Do chest X-ray results that “scor[e]” above some level of opacity count as a “diagnosis”? What level, exactly? See *American Min. Congress v. Mine Safety and Health Admin.*, 995 F. 2d 1106, 1107–1108 (CA DC 1993).
- An FDA regulation gives pharmaceutical companies exclusive rights to drug products if they contain “no active moiety that has been approved by FDA in any other” new drug application. 21 CFR § 314.108(a) (2010). Has a company created a new “active moiety” by joining a previously approved moiety to lysine through a non-ester covalent bond? See *Actavis Elizabeth LLC v. FDA*, 625 F. 3d 760, 762–763 (CA DC 2010); Tr. of Oral Arg. 12, 35.¹
- Or take the facts of *Auer* itself. An agency must decide whether police captains are eligible for overtime under the Fair Labor Standards Act. According to the agency’s regulations, employees cannot receive overtime

¹ In case you’re wondering, the regulatory definition of active moiety is “[t]he molecule or ion, excluding those appended portions of the molecule that cause the drug to be an ester, salt (including a salt with hydrogen or coordination bonds), or the noncovalent derivative (such as a complex, chelate, or clathrate) of the molecule, responsible for the physiological or pharmacological action of the drug substance.” 21 CFR § 314.3(b) (2018).

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if they are paid on a “salary basis.” 29 CFR § 541.118(a) (1996). And in deciding whether an employee is salaried, one question is whether his pay is “subject to reduction” based on performance. *Ibid.* A police department’s manual informs its officers that their pay might be docked if they commit a disciplinary infraction. Does that fact alone make them “subject to” pay deductions? Or must the department have a practice of docking officer pay, so that the possibility of that happening is more than theoretical? 519 U. S., at 459–462.

In each case, interpreting the regulation involves a choice between (or among) more than one reasonable reading. To apply the rule to some unanticipated or unresolved situation, the court must make a judgment call. How should it do so?

In answering that question, we have often thought that a court should defer to the agency’s construction of its own regulation. For the last 20 or so years, we have referred to that doctrine as *Auer* deference, and applied it often.² But the name is something of a misnomer. Before the doctrine was called *Auer* deference, it was called *Seminole Rock* deference—for the 1945 decision in which we declared that when “the meaning of [a regulation] is in doubt,” the agency’s interpretation “becomes of controlling weight unless it is plainly erroneous or inconsistent with the regulation.” 325 U. S., at 414.³ And *Seminole Rock* itself was not built on

² See, e. g., *PLIVA, Inc. v. Mensing*, 564 U. S. 604, 613 (2011); *Chase Bank USA, N. A. v. McCoy*, 562 U. S. 195, 208–210 (2011); *Coeur Alaska, Inc. v. Southeast Alaska Conservation Council*, 557 U. S. 261, 274–275 (2009); *Riegel v. Medtronic, Inc.*, 552 U. S. 312, 328 (2008); *Long Island Care at Home, Ltd. v. Coke*, 551 U. S. 158, 171 (2007); *Washington State Dept. of Social and Health Servs. v. Guardianship Estate of Keffeler*, 537 U. S. 371, 387–388 (2003).

³ Our (pre-*Auer*) decisions applying *Seminole Rock* deference are legion. See, e. g., *Shalala v. Guernsey Memorial Hospital*, 514 U. S. 87, 94–95 (1995); *Thomas Jefferson Univ. v. Shalala*, 512 U. S. 504, 512 (1994); *Stinson v. United States*, 508 U. S. 36, 44–45 (1993); *INS v. National Center for Immigrants’ Rights, Inc.*, 502 U. S. 183, 189–190 (1991); *Robertson v.*

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sand. Deference to administrative agencies traces back to the late nineteenth century, and perhaps beyond. See *United States v. Eaton*, 169 U. S. 331, 343 (1898) (“The interpretation given to the regulations by the department charged with their execution . . . is entitled to the greatest weight”); see Brief for Administrative Law Scholars as *Amici Curiae* 5, n. 3 (collecting early cases); Brief for AFL–CIO as *Amicus Curiae* 8 (same).

We have explained *Auer* deference (as we now call it) as rooted in a presumption about congressional intent—a presumption that Congress would generally want the agency to play the primary role in resolving regulatory ambiguities. See *Martin v. Occupational Safety and Health Review Comm’n*, 499 U. S. 144, 151–153 (1991). Congress, we have pointed out, routinely delegates to agencies the power to implement statutes by issuing rules. See *id.*, at 151. In doing so, Congress knows (how could it not?) that regulations will sometimes contain ambiguities. See *supra*, at 566. But Congress almost never explicitly assigns responsibility to deal with that problem, either to agencies or to courts. Hence the need to presume, one way or the other, what Congress would want. And as between those two choices, agencies have gotten the nod. We have adopted the presumption—though it is always rebuttable—that “the power authoritatively to interpret its own regulations is a component of the

Methow Valley Citizens Council, 490 U. S. 332, 358–359 (1989); *Mullins Coal Co. of Va. v. Director, Office of Workers’ Compensation Programs*, 484 U. S. 135, 159 (1987); *Lyng v. Payne*, 476 U. S. 926, 939 (1986); *Fidelity Fed. Sav. & Loan Assn. v. De la Cuesta*, 458 U. S. 141, 158, n. 13 (1982); *Blanding v. DuBose*, 454 U. S. 393, 401 (1982) (*per curiam*); *Ford Motor Credit Co. v. Milhollin*, 444 U. S. 555, 566 (1980); *United States v. Lariosnoff*, 431 U. S. 864, 872 (1977); *Northern Indiana Public Service Co. v. Porter County Chapter of Izaak Walton League of America, Inc.*, 423 U. S. 12, 15 (1975) (*per curiam*); *Ehlert v. United States*, 402 U. S. 99, 105 (1971); *INS v. Stanisic*, 395 U. S. 62, 72 (1969); *Thorpe v. Housing Authority of Durham*, 393 U. S. 268, 276 (1969); *Udall v. Tallman*, 380 U. S. 1, 16–17 (1965).

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agency's delegated lawmaking powers." *Martin*, 499 U. S., at 151. Or otherwise said, we have thought that when granting rulemaking power to agencies, Congress usually intends to give them, too, considerable latitude to interpret the ambiguous rules they issue.

In part, that is because the agency that promulgated a rule is in the "better position [to] reconstruct" its original meaning. *Id.*, at 152. Consider that if you don't know what some text (say, a memo or an e-mail) means, you would probably want to ask the person who wrote it. And for the same reasons, we have thought, Congress would too (though the person is here a collective actor). The agency that "wrote the regulation" will often have direct insight into what that rule was intended to mean. *Mullins Coal Co. of Va. v. Director, Office of Workers' Compensation Programs*, 484 U. S. 135, 159 (1987). The drafters will know what it was supposed to include or exclude or how it was supposed to apply to some problem. To be sure, this justification has its limits. It does not work so well, for example, when the agency failed to anticipate an issue in crafting a rule (*e. g.*, if the agency never thought about whether and when chest X-rays would count as a "diagnosis"). See *supra*, at 567. Then, the agency will not be uncovering a specific intention; at most (though this is not nothing), it will be offering insight into the analogous issues the drafters considered and the purposes they designed the regulation to serve. And the defense works yet less well when lots of time has passed between the rule's issuance and its interpretation—especially if the interpretation differs from one that has come before. All that said, the point holds good for a significant category of "contemporaneous" readings. *Lyng v. Payne*, 476 U. S. 926, 939 (1986). Want to know what a rule means? Ask its author.

In still greater measure, the presumption that Congress intended *Auer* deference stems from the awareness that resolving genuine regulatory ambiguities often "entail[s] the exercise of judgment grounded in policy concerns."

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Thomas Jefferson Univ. v. Shalala, 512 U. S. 504, 512 (1994) (internal quotation marks omitted). Return to our TSA example. See *supra*, at 567. In most of their applications, terms like “liquids” and “gels” are clear enough. (Traveler checklist: Pretzels OK; water not.) But resolving the uncertain issues—the truffle pâtés or olive tapenades of the world—requires getting in the weeds of the rule’s policy: Why does TSA ban liquids and gels in the first instance? What makes them dangerous? Can a potential hijacker use pâté jars in the same way as soda cans? Or take the less specialized-seeming ADA example. See *supra*, at 566–567. It is easy enough to know what “comparable lines of sight” means in a movie theater—but more complicated when, as in sports arenas, spectators sometimes stand up. How costly is it to insist that the stadium owner take that sporadic behavior into account, and is the viewing value received worth the added expense? That cost-benefit calculation, too, sounds more in policy than in law. Or finally, take the more technical “moiety” example. See *supra*, at 567. Or maybe, don’t. If you are a judge, you probably have no idea of what the FDA’s rule means, or whether its policy is implicated when a previously approved moiety is connected to lysine through a non-ester covalent bond.

And Congress, we have thought, knows just that: It is attuned to the comparative advantages of agencies over courts in making such policy judgments. Agencies (unlike courts) have “unique expertise,” often of a scientific or technical nature, relevant to applying a regulation “to complex or changing circumstances.” *Martin*, 499 U. S., at 151; see *Thomas Jefferson*, 512 U. S., at 512. Agencies (unlike courts) can conduct factual investigations, can consult with affected parties, can consider how their experts have handled similar issues over the long course of administering a regulatory program. See *Long Island Care at Home, Ltd. v. Coke*, 551 U. S. 158, 167–168 (2007). And agencies (again unlike courts) have political accountability, because they are subject to the

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supervision of the President, who in turn answers to the public. See *Free Enterprise Fund v. Public Company Accounting Oversight Bd.*, 561 U. S. 477, 499 (2010); *Pauley v. BethEnergy Mines, Inc.*, 501 U. S. 680, 696 (1991) (discussing as a matter of democratic accountability the “proper roles of the political and judicial branches” in filling regulatory gaps). It is because of those features that Congress, when first enacting a statute, assigns rulemaking power to an agency and thus authorizes it to fill out the statutory scheme. And so too, when new issues demanding new policy calls come up within that scheme, Congress presumably wants the same agency, rather than any court, to take the laboring oar.

Finally, the presumption we use reflects the well-known benefits of uniformity in interpreting genuinely ambiguous rules. We have noted Congress’s frequent “preference for resolving interpretive issues by uniform administrative decision, rather than piecemeal through litigation.” *Ford Motor Credit Co. v. Milhollin*, 444 U. S. 555, 568 (1980). That preference may be strongest when the interpretive issue arises in the context of a “complex and highly technical regulatory program.” *Thomas Jefferson*, 512 U. S., at 512. After all, judges are most likely to come to divergent conclusions when they are least likely to know what they are doing. (Is there anything to be said for courts all over the country trying to figure out what makes for a new active moiety?) But the uniformity justification retains some weight even for more accessible rules, because their language too may give rise to more than one eminently reasonable reading. Consider *Auer* itself. See *supra*, at 567–568. There, four Circuits held that police captains were “subject to” pay deductions for disciplinary infractions if a police manual said they were, even if the department had never docked anyone. Two other Circuits held that captains were “subject to” pay deductions only if the department’s actual practice made that punishment a realistic possibility. See *Auer*, 519 U. S., at 460. Had the agency issued an interpretation before all those rulings

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(rather than, as actually happened, in a brief in this Court), a deference rule would have averted most of that conflict and uncertainty. See *Christopher v. SmithKline Beecham Corp.*, 567 U. S. 142, 158, n. 17 (2012) (noting for this reason that *Auer* deference imparts “predictability to the administrative process” (internal quotation marks omitted)). *Auer* deference thus serves to ensure consistency in federal regulatory law, for everyone who needs to know what it requires.

B

But all that said, *Auer* deference is not the answer to every question of interpreting an agency’s rules. Far from it. As we explain in this section, the possibility of deference can arise only if a regulation is genuinely ambiguous. And when we use that term, we mean it—genuinely ambiguous, even after a court has resorted to all the standard tools of interpretation. Still more, not all reasonable agency constructions of those truly ambiguous rules are entitled to deference. As just explained, we presume that Congress intended for courts to defer to agencies when they interpret their own ambiguous rules. See *supra*, at 566–573. But when the reasons for that presumption do not apply, or countervailing reasons outweigh them, courts should not give deference to an agency’s reading, except to the extent it has the “power to persuade.” *Christopher*, 567 U. S., at 159 (quoting *Skidmore v. Swift & Co.*, 323 U. S. 134, 140 (1944)). We have thus cautioned that *Auer* deference is just a “general rule”; it “does not apply in all cases.” *Christopher*, 567 U. S., at 155. And although the limits of *Auer* deference are not susceptible to any rigid test, we have noted various circumstances in which such deference is “unwarranted.” *Ibid.* In particular, that will be so when a court concludes that an interpretation does not reflect an agency’s authoritative, expertise-based, “fair[, or] considered judgment.” *Ibid.* (quoting *Auer*, 519 U. S., at 462); cf. *United States v.*

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Mead Corp., 533 U. S. 218, 229–231 (2001) (adopting a similar approach to *Chevron* deference).

We take the opportunity to restate, and somewhat expand on, those principles here to clear up some mixed messages we have sent. At times, this Court has applied *Auer* deference without significant analysis of the underlying regulation. See, e. g., *United States v. Larionoff*, 431 U. S. 864, 872 (1977) (stating that the Court “need not tarry” over the regulation’s language given *Seminole Rock*). At other times, the Court has given *Auer* deference without careful attention to the nature and context of the interpretation. See, e. g., *Thorpe v. Housing Authority of Durham*, 393 U. S. 268, 276, and nn. 22–23 (1969) (deferring to an agency’s view as expressed in letters to third parties). And in a vacuum, our most classic formulation of the test—whether an agency’s construction is “plainly erroneous or inconsistent with the regulation,” *Seminole Rock*, 325 U. S., at 414—may suggest a caricature of the doctrine, in which deference is “reflexive.” *Pereira v. Sessions*, 585 U. S. 198, 221 (2018) (Kennedy, J., concurring). So we cannot deny that Kisor has a bit of grist for his claim that *Auer* “bestows on agencies expansive, unreviewable” authority. Brief for Petitioner 25. But in fact *Auer* does no such thing: It gives agencies their due, while also allowing—indeed, obligating—courts to perform their reviewing and restraining functions. So before we turn to Kisor’s specific grievances, we think it worth reinforcing some of the limits inherent in the *Auer* doctrine.⁴

First and foremost, a court should not afford *Auer* deference unless the regulation is genuinely ambiguous. See *Christensen v. Harris County*, 529 U. S. 576, 588 (2000); *Seminole Rock*, 325 U. S., at 414 (deferring only “if the meaning of the words used is in doubt”). If uncertainty does not

⁴The proper understanding of the scope and limits of the *Auer* doctrine is, of course, not set out in any of the opinions that concur only in the judgment.

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exist, there is no plausible reason for deference. The regulation then just means what it means—and the court must give it effect, as the court would any law. Otherwise said, the core theory of *Auer* deference is that sometimes the law runs out, and policy-laden choice is what is left over. See *supra*, at 570–572. But if the law gives an answer—if there is only one reasonable construction of a regulation—then a court has no business deferring to any other reading, no matter how much the agency insists it would make more sense. Deference in that circumstance would “permit the agency, under the guise of interpreting a regulation, to create *de facto* a new regulation.” See *Christensen*, 529 U. S., at 588. *Auer* does not, and indeed could not, go that far.

And before concluding that a rule is genuinely ambiguous, a court must exhaust all the “traditional tools” of construction. *Chevron U. S. A. Inc. v. Natural Resources Defense Council, Inc.*, 467 U. S. 837, 843, n. 9 (1984) (adopting the same approach for ambiguous statutes). For again, only when that legal toolkit is empty and the interpretive question still has no single right answer can a judge conclude that it is “more [one] of policy than of law.” *Pauley*, 501 U. S., at 696. That means a court cannot wave the ambiguity flag just because it found the regulation impenetrable on first read. Agency regulations can sometimes make the eyes glaze over. But hard interpretive conundrums, even relating to complex rules, can often be solved. See *id.*, at 707 (Scalia, J., dissenting) (A regulation is not ambiguous merely because “discerning the only possible interpretation requires a taxing inquiry”). To make that effort, a court must “carefully consider[]” the text, structure, history, and purpose of a regulation, in all the ways it would if it had no agency to fall back on. *Ibid.* Doing so will resolve many seeming ambiguities out of the box, without resort to *Auer* deference.

If genuine ambiguity remains, moreover, the agency’s reading must still be “reasonable.” *Thomas Jefferson*, 512

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U. S., at 515. In other words, it must come within the zone of ambiguity the court has identified after employing all its interpretive tools. (Note that serious application of those tools therefore has use even when a regulation turns out to be truly ambiguous. The text, structure, history, and so forth at least establish the outer bounds of permissible interpretation.) Some courts have thought (perhaps because of *Seminole Rock*'s "plainly erroneous" formulation) that at this stage of the analysis, agency constructions of rules receive greater deference than agency constructions of statutes. See, e. g., *Ohio Dept. of Medicaid v. Price*, 864 F. 3d 469, 477 (CA6 2017). But that is not so. Under *Auer*, as under *Chevron*, the agency's reading must fall "within the bounds of reasonable interpretation." *Arlington v. FCC*, 569 U. S. 290, 296 (2013). And let there be no mistake: That is a requirement an agency can fail.

Still, we are not done—for not every reasonable agency reading of a genuinely ambiguous rule should receive *Auer* deference. We have recognized in applying *Auer* that a court must make an independent inquiry into whether the character and context of the agency interpretation entitles it to controlling weight. See *Christopher*, 567 U. S., at 155; see also *Mead*, 533 U. S., at 229–231, 236–237 (requiring an analogous though not identical inquiry for *Chevron* deference). As explained above, we give *Auer* deference because we presume, for a set of reasons relating to the comparative attributes of courts and agencies, that Congress would have wanted us to. See *supra*, at 569–573. But the administrative realm is vast and varied, and we have understood that such a presumption cannot always hold. Cf. *Mead*, 533 U. S., at 236 ("tailor[ing] deference to [the] variety" of administrative action); *Arlington*, 569 U. S., at 309–310 (BREYER, J., concurring in part and concurring in judgment) (noting that "context-specific[] factors" may show that "Congress would [not] have intended the agency to resolve [some] ambiguity"). The inquiry on this dimension does not reduce to any exhaustive test. But we have laid out some especially important mark-

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ers for identifying when *Auer* deference is and is not appropriate.

To begin with, the regulatory interpretation must be one actually made by the agency. In other words, it must be the agency's "authoritative" or "official position," rather than any more ad hoc statement not reflecting the agency's views. *Mead*, 533 U. S., at 257–259, and n. 6 (Scalia, J., dissenting). That constraint follows from the logic of *Auer* deference—because Congress has delegated rulemaking power, and all that typically goes with it, to the agency alone. Of course, the requirement of "authoritative" action must recognize a reality of bureaucratic life: Not everything the agency does comes from, or is even in the name of, the Secretary or his chief advisers. So, for example, we have deferred to "official staff memoranda" that were "published in the Federal Register," even though never approved by the agency head. *Ford Motor Credit*, 444 U. S., at 566, n. 9, 567, n. 10 (declining to "draw a radical distinction between" agency heads and staff for *Auer* deference). But there are limits. The interpretation must at the least emanate from those actors, using those vehicles, understood to make authoritative policy in the relevant context. See, e. g., *Paralyzed Veterans*, 117 F. 3d, at 587 (refusing to consider a "speech of a mid-level official" as an "authoritative departmental position"); *N. Y. State Dept. of Social Servs. v. Bowen*, 835 F. 2d 360, 365–366 (CA2C 1987) (rejecting the idea that an "informal memorandum" recounting a telephone conversation between employees could count as an "authoritative pronouncement"); *Exelon Generation Co. v. Local 15, Int'l Brotherhood of Elec. Workers, AFL-CIO*, 676 F. 3d 566, 576–578 (CA7 2012) (declining deference when the agency had itself "disclaimed the use of regulatory guides as authoritative"). If the interpretation does not do so, a court may not defer.

Next, the agency's interpretation must in some way implicate its substantive expertise. Administrative knowledge and experience largely "account [for] the presumption that Congress delegates interpretive lawmaking power to the

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agency.” *Martin*, 499 U. S., at 153. So the basis for deference ebbs when “[t]he subject matter of the [dispute is] distant from the agency’s ordinary” duties or “fall[s] within the scope of another agency’s authority.” *Arlington*, 569 U. S., at 309 (opinion of BREYER, J.). This Court indicated as much when it analyzed a “split enforcement” scheme, in which Congress divided regulatory power between two entities. *Martin*, 499 U. S., at 151. To decide “whose reasonable interpretation” of a rule controlled, we “presum[ed] Congress intended to invest interpretive power” in whichever actor was “best position[ed] to develop” expertise about the given problem. *Id.*, at 149, 153. The same idea holds good as between agencies and courts. “Generally, agencies have a nuanced understanding of the regulations they administer.” Brief for Respondent 33. That point is most obvious when a rule is technical; think back to our “moiety” or “diagnosis” examples. See *supra*, at 567. But more prosaic-seeming questions also commonly implicate policy expertise; consider the TSA assessing the security risks of pâté or a disabilities office weighing the costs and benefits of an accommodation. See *supra*, at 566–567. Once again, though, there are limits. Some interpretive issues may fall more naturally into a judge’s bailiwick. Take one requiring the elucidation of a simple common-law property term, see *Jicarilla Apache Tribe v. FERC*, 578 F.2d 289, 292–293 (CA10 1978), or one concerning the award of an attorney’s fee, see *West Va. Highlands Conservancy, Inc. v. Norton*, 343 F.3d 239 (CA4 2003). Cf. *Adams Fruit Co. v. Barrett*, 494 U. S. 638, 649–650 (1990) (declining to award *Chevron* deference when an agency interprets a judicial-review provision). When the agency has no comparative expertise in resolving a regulatory ambiguity, Congress presumably would not grant it that authority.⁵

⁵ For a similar reason, this Court has denied *Auer* deference when an agency interprets a rule that parrots the statutory text. See *Gonzales v. Oregon*, 546 U. S. 243, 257 (2006). An agency, we explained, gets no “spe-